

HOUSE BILL 1830

By Mitchell

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 40; Title 54 and Title 65, relative to railroads.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 65, Chapter 11, Part 1, is amended by adding the following as a new section:

(a) As used in this section, "railroad crossing" means any location where a public street or highway is crossed by, or intersects with, a railroad track or line.

(b) A railroad company controlling the movement of a railroad train, car, engine, or other equipment shall not permit the train, car, engine, or other equipment to obstruct or cause the obstruction of a railroad crossing for a period in excess of thirty (30) consecutive minutes if the railroad crossing provides the primary ingress and egress to and from a hospital, residential neighborhood, or occupied residence based on vehicle traffic counts.

(c)

(1) The commissioner of transportation may, after providing notice and opportunity for a hearing under the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, impose a civil penalty of one thousand dollars (\$1,000) per violation against the railroad company.

(2) If a second or subsequent violation of subsection (b) occurs at the same railroad crossing a second or subsequent time within eighteen (18) months from the date of the first occurrence, the commissioner may impose, after providing notice and opportunity for a hearing under the Uniform Administrative

Procedures Act, compiled in title 4, chapter 5, a civil penalty up to three thousand dollars (\$3,000) upon the railroad company.

(d) All civil penalties collected by the commissioner pursuant to this section must be allocated as follows:

(1) Fifteen percent (15%) must be retained by the department of transportation for costs of administration of this section; and

(2) Eighty-five percent (85%) must be distributed to the county or municipality in which the violation of subsection (b) occurred and used solely for railroad crossing projects on county roads or municipal streets within the county or municipality, as applicable.

(e) A railroad company is not immune from any civil liability that may be imposed or incurred for bodily injury to, or the death of, a person as a result of the person being transported in an ambulance or other emergency services vehicle that is blocked or obstructed at a railroad crossing in violation of subsection (b).

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to violations occurring on or after that date.